



April 7, 2026

Wayne R. Rohde

Direct Phone 202-463-2507

Direct Fax 202-640-5912

wrohde@cozen.com

VIA EMAIL

Amy Strauss
Acting Director
Bureau of Trade Analysis
Federal Maritime Commission
800 North Capitol Street, NW
Washington, DC 20573

RE: **URGENT** – Request for Special Permission on behalf of
Maersk A/S, Org No. 025360

Dear Ms. Strauss:

Pursuant to 46 C.F.R. §520.14, Maersk A/S, Org. No. 025360 (“Maersk”) respectfully requests special permission to deviate from 46 C.F.R. §520.8(a) and to advance the effective date of the Emergency Bunker Surcharge (“EBS”) applicable to cargo moving to/from the People’s Republic of China (“PRC”) and Taiwan. The reasons for this request are set forth below.

As the Commission is aware, armed hostilities in the Middle East and the closure of the Strait of Hormuz have resulted in a worldwide increase in the price of crude oil and products derived from crude oil, including bunker fuel utilized in cargo ships such as those operated by Maersk. For example, on February 6 the price of Very Low Sulfur Fuel Oil (“VLSFO”) at the global top 20 ports as reported by shipandbunker.com was \$509/metric ton. On March 9, the price was \$929/metric ton.

Cognizant of the impact these price increases would have on the cost of its operations, Maersk published the EBS in its tariffs on thirty (30) days’ notice, for effect on April 9. A copy of the customer notice of this new charge, demonstrating Maersk’s intent to apply it to all U.S. trades as of April 9, is attached hereto as Exhibit A.

Due to regulatory requirements in the PRC, Maersk intended to publish a text tariff rule applying the EBS to cargo moving to/from the PRC and Taiwan rather than publishing the charge in its rate look up tool as it did for other trades. However, due to an oversight by Maersk’s service center responsible for tariff publication, the text rule was not published for effect on April 9.

As soon as the failure to publish the text rule was discovered, Maersk immediately published the tariff rule attached hereto as Exhibit B, applying the EBS to the PRC and Taiwan, for effect on April 17.

Maersk now seeks special permission to advance the April 17 effective date of the EBS applicable to the PRC and Taiwan to April 9, consistent with its original intent and the treatment of all other U.S. trade lanes. The lapse in time between the publication of the text rule and the filing of this request is due to the fact that a separate request for special permission with respect to the entire EBS was pending at the time. Once the previous request with respect to the effective date of the EBS generally once denied, it became necessary to file this more narrow request focused on one small aspect of the EBS.

Pursuant to 46 C.F.R. §520.14(b), clerical errors of the type herein at issue constitute good cause for the exercise of the special permission authority.

The \$394 filing fee for this request has been paid electronically. The Pay.gov tracking ID is 28179TCD and the Agency Tracking ID is 77350758634.

Thank you in advance for your favorable consideration of this request. Should you have any questions or require any further information, please do not hesitate to contact the undersigned.

Sincerely,

COZEN O'CONNOR

A handwritten signature in black ink, appearing to read "Wayne F. Rohde". The signature is stylized with a large, looped "W" and "R".

By: Wayne Rohde

WRR

Enclosures